

CHAPTER 1

Elections

ARTICLE 1

Definitions and General Provisions

1-1-1. Election Code.

Chapter 1 NMSA 1978 may be cited as the "Election Code".

History: 1953 Comp., § 3-1-1, enacted by Laws 1969, ch. 240, § 1; 1975, ch. 255, § 1.

ANNOTATIONS

Temporary provisions. — Laws 2019, ch. 212, § 283 provided that references in the Election Code to "precinct board", shall be deemed to be references to "election board", as that term is defined in Section 1-1-13 NMSA 1978.

Cross references. — For provision that elections are to be free and open, see N.M. Const., art. II, § 8.

For elective franchise generally, see N.M. Const., art. VII.

For date for holding general elections, see N.M. Const., art. XX, § 6.

For provision prohibiting abridging right of suffrage because of race, color or previous servitude, see N.M. Const., art. XXI, § 5.

Ballot requirements to protect public. — In an effort to protect the public from the undesirable effects of an unrestrained nominating process, the legislature has seen fit to place certain requirements on the amount of public support a potential candidate must demonstrate before being placed on the ballot. There is no reason to suspect that these requirements are unreasonable. *Bardacke v. Dunigan*, 1982-NMSC-093, 98 N.M. 473, 649 P.2d 1386.

1927 act. — The 1927 act was a comprehensive Election Code. *State ex rel. Abercrombie v. District Court of Fourth Judicial Dist.*, 1933-NMSC-057, 37 N.M. 407, 24 P.2d 265.

Applicability to referendum. — Former Election Code, and especially Article 7 thereof relating to elections on constitutional amendments and other questions, included and applied to referendum. *State v. Perrault*, 1929-NMSC-099, 34 N.M. 438, 283 P. 902.

Secrecy and purity of ballot to be protected. — Constitutional and statutory provisions calculated to protect the secrecy and purity of the ballot are to receive favorable consideration. *State ex rel. Read v. Crist*, 1919-NMSC-005, 25 N.M. 175, 179 P. 629.

Constructions of election laws should further free exercise of franchise. — In construing election statutes, no construction of constitutional or statutory provisions is to be indulged which

will defeat or unduly restrict or obstruct the free exercise of the elective franchise unless such is compelled by the strict letter of the law. 1963 Op. Att'y Gen. No. 63-139.

Law reviews. — For note, "Why *Gunaji v. Macias* Matters to Candidates and Voters: Its Impact on New Mexico Election Law," see 33 N.M.L. Rev 431 (2003).

Am. Jur. 2d, A.L.R. and C.J.S. references. — What changes in voting practices or procedures must be precleared under § 5 of Voting Rights Act of 1965 (42 USCA § 1973c) - Supreme Court cases, 146 A.L.R. Fed. 619.

1-1-1.1. Purpose of [Election] Code.

It is the purpose of the Election Code [Chapter 1 NMSA 1978] to secure the secrecy of the ballot, the purity of elections and guard against the abuse of the elective franchise. It is also the purpose of the Election Code to provide for efficient administration and conduct of elections.

History: 1978 Comp., § 1-1-1.1, enacted by Laws 1979, ch. 74, § 1.

ANNOTATIONS

Bracketed material. — The bracketed material was inserted by the compiler and is not part of the law.

1-1-2. Headings.

Article and section headings do not in any manner affect the scope, meaning or intent of the provisions of the Election Code [Chapter 1 NMSA 1978].

History: 1953 Comp., § 3-1-2, enacted by Laws 1969, ch. 240, § 2.

ANNOTATIONS

Am. Jur. 2d, A.L.R. and C.J.S. references. — 25 Am. Jur. 2d Elections §§ 2, 3.

29 C.J.S. Elections § 7(4).

1-1-2.1. Ballot box key.

As used in the Election Code, "ballot box key" means:

- A. a physical key that opens a lock used to secure a ballot box; or
- B. the number on a numbered seal affixed to secure a ballot box.

History: Laws 2011, ch. 137, § 3.

ANNOTATIONS

Effective dates. — Laws 2011, ch. 137, § 111 made Laws 2011, ch. 137, § 3 effective July 1, 2011.

1-1-3. "Shall" and "may".

As used in the Election Code [Chapter 1 NMSA 1978], "shall" is mandatory and "may" is permissive.

History: 1953 Comp., § 3-1-3, enacted by Laws 1969, ch. 240, § 3.

ANNOTATIONS

"May" is not infrequently used interchangeably with "must," and, as used in former section dealing with county canvass, imported an absolute obligation. *Reese v. Dempsey*, 1944-NMSC-039, 48 N.M. 417, 152 P.2d 157 (decided under former law).

1-1-3.1. Election cycle.

Except as otherwise provided, as used in the Election Code:

A. "election cycle" means the period beginning on January 1 after the last general election and ending on December 31 after the general election;

B. "general election cycle" means the period beginning on the day after the primary election and ending on December 31 after the general election; and

C. "primary election cycle" means the period beginning on January 1 after the last general election and ending on the day of the primary election.

History: Laws 2003, ch. 356, § 1; 2011, ch. 137, § 4; 2019, ch. 262, § 3.

ANNOTATIONS

The 2019 amendment, effective July 1, 2019, revised the definition of "election cycle" as used in the Election Code; in Subsection A, after "beginning on", deleted "the day" and added "January 1", and after "ending on", deleted "the day of" and added "December 31 after"; in Subsection B, after "ending on", deleted "the day of" and added "December 31 after"; and in Subsection C, after "beginning on", deleted "the day" and added "January 1".

Temporary provisions. — Laws 2019, ch. 262, § 16 provided that the secretary of state, in consultation with the attorney general, shall promulgate rules to implement the amendatory provisions of this act by August 1, 2019.

The 2011 amendment, effective July 1, 2011, redefined "election cycle" and added definitions of "general election cycle" and "primary election cycle".

1-1-3.2. Election observer.

As used in the Election Code, "election observer" means a person registered with the United States department of state as an international election observer or a person registered with the New Mexico secretary of state who is an academic engaged in research on elections and the election process.

History: Laws 2011, ch. 137, § 1.

ANNOTATIONS

Effective dates. — Laws 2011, ch. 137, § 111 made Laws 2011, ch. 137, § 1 effective July 1, 2011.

1-1-3.3. Election-related organization.

As used in the Election Code, "election-related organization" means an organization registered with the secretary of state that is involved in election monitoring or voter turnout activities, but does not include a qualified political party in an election in which the political party is represented on the ballot.

History: Laws 2011, ch. 137, § 2; 2019, ch. 212, § 1.

ANNOTATIONS

The 2019 amendment, effective April 3, 2019, revised the definition of "election-related organization" as used in the Election Code; and added "but does not include a qualified political party in an election in which the political party is represented on the ballot".

1-1-4. Qualified elector.

A. As used in the Election Code and rules promulgated by the secretary of state, "qualified elector" means any resident of this state who is qualified to vote under the provisions of the constitution of New Mexico and the constitution of the United States and includes any qualified resident.

B. As used in all other statutes and rules of New Mexico, unless otherwise defined, "qualified elector" means a "voter" as that term is defined in Section 1-1-5 NMSA 1978.

History: 1953 Comp., § 3-1-4, enacted by Laws 1969, ch. 240, § 4; 1975, ch. 255, § 2; 2011, ch. 137, § 5; 2019, ch. 212, § 2.

ANNOTATIONS

Cross references. — For qualifications of voters, see N.M. Const., art. VII, § 1.

For voting age unaffected by general lowering of age of majority to 18, see 28-6-1 NMSA 1978.

The 2019 amendment, effective April 3, 2019, revised the definition of "qualified elector" as used in the Election Code; in Subsection A, added "and rules promulgated by the secretary of

state", and after "United States", added "and includes any qualified resident"; and added Subsection B.

The 2011 amendment, effective July 1, 2011, defined "qualified elector" as a resident of New Mexico.

Compiler's notes. — A three-judge federal district court sitting in *Trujillo v. Garley*, U.S. Dist. Ct., Civ. A. No. 1353, entered a declaratory judgment on August 11, 1948, that Indians in New Mexico are entitled to vote, the former provisions of the New Mexico constitution to the contrary notwithstanding. The case was not appealed.

Qualification of grand juror. — Grand juror did not have to be a properly registered voter to be a qualified elector, for purposes of sitting on the grand jury. *State v. Chama Land & Cattle Co.*, 1990-NMCA-129, 111 N.M. 317, 805 P.2d 86.

A juror has only to meet the requirements of N.M. Const., art. VII, § 1 to be a qualified elector under 38-5-1 NMSA 1978, and therefore to be qualified to serve as a grand juror. *State v. Chama Land & Cattle Co.*, 1990-NMCA-129, 111 N.M. 317, 805 P.2d 86.

Am. Jur. 2d, A.L.R. and C.J.S. references. — Women's suffrage amendment to federal or state constitution as affecting pre-existing constitutional or statutory provisions which limited rights or duties to legal or male voters, 71 A.L.R. 1332, 157 A.L.R. 461.

Validity of governmental requirement of oath of allegiance or loyalty, 18 A.L.R.2d 268.

29 C.J.S. Elections § 1(7).

1-1-4.1. Federal qualified elector.

As used in the Election Code, "federal qualified elector" means:

A. a uniformed-service voter; or

B. an overseas voter.

History: Laws 2015, ch. 145, § 1.

ANNOTATIONS

Effective dates. — Laws 2015, ch. 145, § 103 made Laws 2015, ch. 145, § 1 effective July 1, 2015.

1-1-5. Voter.

As used in the Election Code, "voter" means any qualified elector or federal qualified elector who is registered to vote under the provisions of the Election Code.

History: 1953 Comp., § 3-1-5, enacted by Laws 1969, ch. 240, § 5; 2011, ch. 137, § 6; 2015, ch. 145, § 4; 2019, ch. 212, § 3.

ANNOTATIONS

The 2019 amendment, effective April 3, 2019, revised the definition of "voter" as used in the Election Code; and after "registered", added "to vote".

The 2015 amendment, effective July 1, 2015, removed the specific reference to overseas voter, the meaning of which is included in the definition of federal qualified elector; after "any qualified elector", added "or", and after "federal qualified elector", deleted "or overseas voter".

The 2011 amendment, effective July 1, 2011, included federal qualified voters and overseas voter in the definition of "voter".

Qualification of grand juror. — Grand juror did not have to be a properly registered voter to be a qualified elector, for purposes of sitting on the grand jury. *State v. Chama Land & Cattle Co.*, 1990-NMCA-129, 111 N.M. 317, 805 P.2d 86.

Am. Jur. 2d, A.L.R. and C.J.S. references. — Incompetents: voting rights of persons mentally incapacitated, 80 A.L.R.3d 1116.

29 C.J.S. Elections § 1(8).

1-1-5.1. Early voter.

As used in the Election Code [Chapter 1 NMSA 1978], "early voter" means a voter who votes in person before election day, and not by mail.

History: Laws 2003, ch. 357, § 7.

ANNOTATIONS

Effective dates. — Laws 2003, ch. 357 contained no effective date provision, but, pursuant to N.M. Const., art. IV, § 23, was effective June 20, 2003, 90 days after adjournment of the legislature.

1-1-5.2. Definition of a vote; machine-tabulated; hand-tallied; write-in.

A. For a candidate contest or ballot question that is machine-tabulated on a vote tabulation system certified for use in this state, a vote shall be counted if the:

(1) voter's selection of a candidate or answer to a ballot question is indicated in the voting response area of the paper ballot; and

(2) ballot is marked in accordance with the instructions for that ballot type.

B. For a candidate contest or ballot question that is hand-tallied, a vote shall be counted if:

(1) the ballot is marked in accordance with the instructions for that ballot type;

(2) the preferred candidate's name or answer to a ballot question is circled;

(3) there is a distinct marking, such as a cross or check, within the voting response area for the preferred candidate or answer to a ballot question; or

(4) the presiding judge and election judges hand-tallying the ballot unanimously agree that the voter's intent is clearly discernable.

C. For a candidate contest in which there is a declared write-in candidate and a write-in vote is cast, the write-in vote shall be counted if the name is:

(1) the name of a declared write-in candidate for that office and position and is on the proper line provided for a write-in vote for that office and position; and

(2) written as first and last name; first name, middle name or initial and last name; one or two initials and last name; or last name alone if there is no other declared write-in candidate for the office or position that is the same or so similar as to tend to confuse the candidates' identities; provided that:

(a) when the presiding judge and election judges reviewing the write-in vote unanimously agree that the voter's intent is clearly discernable, an abbreviation, misspelling or other minor variation in the form of the name of a declared write-in candidate shall be accepted as a valid vote; and

(b) as used in this subsection, "write-in" and "written" do not include the imprinting of any name by stamp or similar method or device or the use of a stencil or a preprinted sticker or label.

History: Laws 2003, ch. 356, § 9; 2005, ch. 270, § 58; 2007, ch. 337, § 11; § 1-9-4.2 NMSA 1978, recompiled as § 1-1-5.2 NMSA 1978 by Laws 2010, ch. 28, § 21; 2019, ch. 212, § 4; 2023, ch. 39, § 3.

ANNOTATIONS

Recompilations. — Laws 2010, ch. 28, § 21 recompiled former 1-9-4.2 NMSA 1978 as 1-1-5.2 NMSA 1978, effective March 3, 2010.

The 2023 amendment, effective June 16, 2023, revised language related to the definition of a vote; in Subsections A and B, after "For a", deleted "paper ballot" and added "candidate contest or ballot question"; and in Subsection C, after "For a", deleted "paper ballot that is machine-tabulated or hand-tallied and that contains" and added "candidate contest in which there is a declared write-in candidate and".

The 2019 amendment, effective April 3, 2019, revised the definition of a vote; in the section heading, deleted "counting of", and added "machine-tabulated", and deleted "ballots" and added "write-in"; in Subsection A, deleted "A vote for" and added "For", deleted "used on an electronic vote tabulating system, optical scan vote tabulating system or high-speed central count vote tabulator consists of a" and added "that is machine-tabulated on a vote tabulation system certified for use in this state, a vote shall be counted if the", added paragraph designations "(1)" and "(2)", and in Paragraph A(2), added "ballot is"; in Subsection B, Paragraph B(3), after "there is a", added "distinct marking, such as a", and in Paragraph B(4), after "judges", deleted "for the precinct" and added "hand-tallying the ballot"; and added Subsection C.

Hand-tallied ballots. — This section, as implemented by the regulations of the secretary of state which lay out detailed guidelines for determining what kinds of ballot marks should and should not constitute a legal vote along with graphical examples of ballots with unconventional markings, accompanied by rules about how to interpret such marks, is constitutional on its face. *State of N.M. ex rel. League of Women Voters v. Herrera*, 2009-NMSC-003, 145 N.M. 563, 203 P.3d 94.

1-1-5.3. Overseas voter.

As used in the Election Code, "overseas voter" means an individual who is a United States citizen, who is outside the United States and who:

- A. is temporarily absent from the individual's residence in this state;
- B. before leaving the United States, was last eligible to vote in this state and, except for a state residency requirement, otherwise satisfies this state's voter eligibility requirements;
- C. before leaving the United States, would have been last eligible to vote in this state had the voter then been of voting age and, except for a state residency requirement, otherwise satisfies this state's voter eligibility requirements; or
- D. was born outside the United States, is not otherwise described in this section and, except for a state residency requirement, otherwise satisfies this state's voter eligibility requirements, if:
 - (1) the last place where a parent or legal guardian of the individual was, or would have been, eligible to vote before leaving the United States is within this state; and
 - (2) the individual has not previously registered to vote in any other state.

History: Laws 2015, ch. 145, § 2.

ANNOTATIONS

Effective dates. — Laws 2015, ch. 145, § 103 made Laws 2015, ch. 145, § 2 effective July 1, 2015.

1-1-5.4. Uniformed-service voter.

As used in the Election Code, "uniformed-service voter" means an individual who is a United States citizen, whose voting residence is in this state, who otherwise satisfies this state's voter eligibility requirements and who is:

- A. a member of the active or reserve components of the army, navy, air force, space force, marine corps or coast guard of the United States who is on active duty and who by reason of that active duty is absent from the state;
- B. a member of the merchant marine, the commissioned corps of the public health service, the astronaut program of the national aeronautics and space administration or the

commissioned corps of the national oceanic and atmospheric administration of the United States and who by reason of that service is absent from the state;

C. a member on activated status of the national guard or state militia and who by reason of that active duty is absent from the member's county of residence; or

D. a spouse or dependent of a member referred to in Subsection A, B or C of this section and who, by reason of active duty or service of the member, is absent from the state; provided the spouse or dependent is an individual recognized as a spouse or dependent by the entity under which the member is serving.

History: Laws 2015, ch. 145, § 3; 2024, ch. 21, § 2.

ANNOTATIONS

The 2024 amendment, effective May 15, 2024, included members of the space force in the definition of "uniformed-service voter"; and in Subsection A, after "air force" added "space force".

1-1-5.5. Power of attorney; prohibited use.

A power of attorney or other form of proxy is not valid for use by a person in any procedure or transaction concerning elections, including voter registration, petition signature, voter-registration cancellation, absentee ballot requests or voting another person's ballot.

History: Laws 2015, ch. 145, § 5.

ANNOTATIONS

Effective dates. — Laws 2015, ch. 145, § 103 made Laws 2015, ch. 145, § 5 effective July 1, 2015.

1-1-5.6. Ballot question.

As used in the Election Code, "ballot question" means a question submitted to the voters of the state or a local government on a ballot pursuant to the provisions of the Election Code and does not include a candidate nomination, election contest or nonpartisan judicial retention election.

History: Laws 2019, ch. 212, § 10.

ANNOTATIONS

Emergency clauses. — Laws 2019, ch. 212, § 286, contained an emergency clause and was approved April 3, 2019.

1-1-5.7. County.

As used in the Election Code, "county" means a county in this state, including a combined city and county corporation, incorporated county, urban county or single urban government.

History: Laws 2019, ch. 212, § 11.

ANNOTATIONS

Emergency clauses. — Laws 2019, ch. 212, § 286, contained an emergency clause and was approved April 3, 2019.

1-1-5.8. Municipality.

As used in the Election Code, "municipality" means an incorporated city, town or village, whether incorporated under general act, special act, special charter or territorial charter, but does not mean a combined city and county corporation, an incorporated county or a single urban government.

History: Laws 2019, ch. 212, § 12.

ANNOTATIONS

Emergency clauses. — Laws 2019, ch. 212, § 286, contained an emergency clause and was approved April 3, 2019.

1-1-5.9. Proper filing officer.

As used in the Election Code, "proper filing officer" means, for the purposes of filing:

A. reports required by the Campaign Reporting Act [1-19-25 to 1-19-36 NMSA 1978] and the School District Campaign Reporting Act [1-22A-1 to 1-22A-10 NMSA 1978], the secretary of state;

B. declarations of candidacy and candidate qualification documents by any candidate for statewide or federal office, the secretary of state; and

C. declarations of candidacy and candidate qualification documents by all other candidates, the county clerk of the county in which the candidate resides.

History: Laws 2019, ch. 212, § 14.

ANNOTATIONS

Emergency clauses. — Laws 2019, ch. 212, § 286, contained an emergency clause and was approved April 3, 2019.

1-1-5.10. Qualified resident.

As used in the Election Code, "qualified resident" means an individual who is under the age of eighteen and, except for the age requirement, otherwise satisfies the state's voter eligibility requirements as a qualified elector or a federal qualified elector.

History: Laws 2019, ch. 212, § 15.

ANNOTATIONS

Emergency clauses. — Laws 2019, ch. 212, § 286, contained an emergency clause and was approved April 3, 2019.

1-1-5.11. Special election.

As used in the Election Code, "special election" means an election at which only ballot questions are considered and that is held at a time other than a statewide election.

History: Laws 2019, ch. 212, § 16.

ANNOTATIONS

Emergency clauses. — Laws 2019, ch. 212, § 286, contained an emergency clause and was approved April 3, 2019.

1-1-5.12. Statewide election.

As used in the Election Code, "statewide election" means:

- A. a general election;
- B. a political party primary;
- C. a regular local election; or

D. with respect to the applicable counties and precincts, an election called to fill a vacancy in the office of United States representative.

History: Laws 2019, ch. 212, § 17.

ANNOTATIONS

Emergency clauses. — Laws 2019, ch. 212, § 286, contained an emergency clause and was approved April 3, 2019.

1-1-5.13. United States.

As used in the Election Code, "United States" means the several states and the District of Columbia, but does not mean Puerto Rico, the United States Virgin Islands or any territory or insular possession subject to the jurisdiction of the United States.

History: Laws 2019, ch. 212, § 18.

ANNOTATIONS

Emergency clauses. — Laws 2019, ch. 212, § 286, contained an emergency clause and was approved April 3, 2019.

1-1-6. Recheck and recount.

As used in the Election Code [Chapter 1 NMSA 1978]:

A. "recheck" pertains to electronic vote tabulating systems and means a verification procedure whereby a printout of the electronic record of votes cast in an election is made from each electronic memory device in the electronic vote tabulating system and the results are compared with the results shown on the official returns; and

B. "recount" pertains to all paper ballots, including absentee ballots, provisional paper ballots, optical scan paper ballots and any other paper ballot and means a verification procedure whereby the voters' selections for an office are retallied and the results compared with the results shown on the official returns.

History: 1953 Comp., § 3-1-5.1, enacted by Laws 1977, ch. 222, § 1; 2005, ch. 270, § 8; 2007, ch. 337, § 3; 2009, ch. 150, § 1.

ANNOTATIONS

The 2009 amendment, effective June 19, 2009, in Subsection B, after "pertains to", deleted "emergency" and added "all"; after "paper ballots", added "including"; deleted "retabulated by feeding the ballots into an electronic vote tabulating system, and the voters' selections on ballots that cannot be read by the system are counted by hand" and added the word "retallied".

The 2007 amendment, effective July 1, 2007, amended Subsection A to define "recheck" as pertaining to electronic vote tabulating systems; and Subsection B to define "recount" to include a verification procedure whereby voters' selections are retabulated by feeding the ballots into an electronic vote tabulating system.

The 2005 amendment, effective July 1, 2005, in Subsection A, changed "voting machines" to "electronic voting systems"; deleted the former provision that "recheck" means a verification procedure where the center counter compartment door of the voting machine is opened; provided that "recheck" means the verification procedure where a printout of the electronic records of votes cast in an election is made from each electronic memory device in the electronic voting system; deleted the former provision that the results of the balloting as shown on the counters of the machine are compared with the official returns; and in Subsection B, defined "recount" to include provisional paper ballots, optical scan paper ballots, voter verifiable and auditable paper ballots, paper ballots printed by electronic voting systems and any other paper ballot; deleted the former provision that "recount" means a retabulation and retallying of individual ballots; and defined "recount" to mean a verification procedure whereby the voters' selection on the paper ballot may be counted by hand and the results compared to the official returns.

Examination of write-in scrolls constitutes a "recheck," and is covered by 1-14-14 NMSA 1978. *Weldon v. Sanders*, 1982-NMSC-136, 99 N.M. 160, 655 P.2d 1004.

1-1-7. Residence; rules for determining.

For the purpose of determining residence for voting, the place of residence is governed by the following rules:

A. the residence of a person is that place in which his habitation is fixed, and to which, whenever he is absent, he has the intention to return;

B. the place where a person's family resides is presumed to be his place of residence, but a person who takes up or continues his abode with the intention of remaining at a place other than where his family resides is a resident where he abides;

C. a change of residence is made only by the act of removal joined with the intent to remain in another place. There can be only one residence;

D. a person does not gain or lose residence solely by reason of his presence or absence while employed in the service of the United States or of this state, or while a student at an institution of learning, or while kept in an institution at public expense, or while confined in a public prison or while residing upon an Indian or military reservation;

E. no member of the armed forces of the United States, his spouse or his dependent is a resident of this state solely by reason of being stationed in this state;

F. a person does not lose his residence if he leaves his home and goes to another country, state or place within this state for temporary purposes only and with the intention of returning;

G. a person does not gain a residence in a place to which he comes for temporary purposes only;

H. a person loses his residence in this state if he votes in another state in an election requiring residence in that state, and has not upon his return regained his residence in this state under the provisions of the constitution of New Mexico;

I. "residence" is computed by not including the day on which the person's residence commences and by including the day of the election;

J. a person does not acquire or lose residence by marriage only.

History: 1953 Comp., § 3-1-6, enacted by Laws 1969, ch. 240, § 6; 1973, ch. 70, § 1.

ANNOTATIONS

Cross references. — For residence not acquired or lost by presence or absence in federal or state service or as student, see N.M. Const., art. VII, § 4.

Establishing physical presence. — Under Subsections C and H of this section, a person who does not have a sufficient physical presence in a place to qualify that place as an abode or a habitation (i.e., as a place where the person lives or resides, even if only part-time) must establish such a physical presence in the place - that is, he must "remove" to the place - before his voting residence can be changed to that place. *Klumker v. Van Allred*, 1991-NMSC-045, 112 N.M. 42, 811 P.2d 75.

Loss of residence status. — A person who physically leaves the county where he has resided and then votes or qualifies to vote outside that county loses his residence in that county for voting purposes. *Klumker v. Van Allred*, 1991-NMSC-045, 112 N.M. 42, 811 P.2d 75.

Multiple residences not precluded. — This section and 1-1-7.1 NMSA 1978 merely codify the supreme court's pronouncement in *State ex rel. Magee v. Williams*, 1953-NMSC-082, 57 N.M. 588, 261 P.2d 131, and do not preclude the possibility of multiple residences. *Apodaca v. Chavez*, 1990-NMSC-028, 109 N.M. 610, 788 P.2d 366.

Family home as permanent residence. — Political candidate's Santa Fe county family home remained his permanent residence, even though he maintained a home in Rio Arriba county where he resided with his wife and two children. *Apodaca v. Chavez*, 1990-NMSC-028, 109 N.M. 610, 788 P.2d 366.

Circumstantial evidence of intent to reside sufficient. — It is obviously difficult to prove an intent to reside by direct evidence. Circumstantial evidence of intent is sufficient if it can be said that it amounts to substantial evidence. *State ex rel. Huning v. Los Chavez Zoning Comm'n.*, 1982-NMSC-024, 97 N.M. 472, 641 P.2d 503, *rev'g* 1979-NMSC-088, 93 N.M. 655, 604 P.2d 121.

Change of residence is accomplished only by the act of moving to another place coupled with the intent to remain in the other place. *Kiehne v. Atwood*, 1979-NMSC-098, 93 N.M. 657, 604 P.2d 123.

Residence for voting similar to residence for jury service. — There is a similarity between residence for the purpose of voting and residence for the purpose of serving as a juror. *State v. Watkins*, 1979-NMCA-003, 92 N.M. 470, 590 P.2d 169.

Right of Indian to vote. — There is nothing in the constitution or the statutes which prohibits an Indian from voting in a proper election, provided he fulfills the statutory requirements required of any other voter. *Montoya v. Bolack*, 1962-NMSC-073, 70 N.M. 196, 372 P.2d 387.

Reservation deemed residence for voting purposes. — A reservation lying within geographic boundaries of the state is a part of the state, and residence for voting purposes, within the meaning of the constitution, follows. *Montoya v. Bolack*, 1962-NMSC-073, 70 N.M. 196, 372 P.2d 387.

Polling places may be placed on reservations. — Inasmuch as there is residence on a reservation for voting purposes, there is no prohibition to the location of polling places thereon. *Montoya v. Bolack*, 1962-NMSC-073, 70 N.M. 196, 372 P.2d 387.

Vote cast outside residence of voter is void; it must be cast in person in the precinct in which the voter has resided for the preceding 30 days. *State ex rel. Bd. of Cnty. Comm'rs v. Board of*

Cnty. Comm'rs, 1954-NMSC-124, 59 N.M. 9, 277 P.2d 960; *Arledge v. Mabry*, 1948-NMSC-047, 52 N.M. 303, 197 P.2d 884.

Franchise cannot be conferred on nonresident. — Former statute purporting to make residents living on condemned lands residents of New Mexico in the constitutional sense did not aid person living on condemned lands at Los Alamos project, since legislature could not constitutionally confer the elective franchise on persons whose legal status was that of a nonresident. *Arledge v. Mabry*, 1948-NMSC-047, 52 N.M. 303, 197 P.2d 884.

Candidate to file in district where he resides. — In order for a candidate for county commission or state representative to qualify for those offices, he must file in the district where he resides. 1966 Op. Att'y Gen. No. 66-30.

Change of residence by candidate. — In order to run in a certain district, a candidate can change his residency at any time up to the filing date, so long as the legislative district is in the same county. 1966 Op. Att'y Gen. No. 66-30.

Those residing on former public domain land may exercise elective franchise in both state and federal elections, since the state retained jurisdiction over the area not inconsistent with federal use. 1964 Op. Att'y Gen. No. 64-123.

No residence on purchased without consent of state. — Those people residing on land obtained by the United States through the constitutional method may not establish their residency so as to become electors; those residing on lands obtained by purchase without obtaining the consent of the state are in a similar position. 1964 Op. Att'y Gen. No. 64-123.

Establishing residence. — "Residence" for voting and election purposes is established initially by actual residence and intent to make that place a home. After "residence" is thus established, the person may move elsewhere, and if he intends to return, his "residence" for voting and election purposes remains as established. 1956 Op. Att'y Gen. No. 56-6445.

For those residing upon lands within military installations which formerly were part of public domain, "residence" for voting purposes could be established thereon. The reasoning behind this conclusion is that the state of New Mexico, as to these lands, exercised concurrent jurisdiction with the federal government even though title was held by the federal government. 1956 Op. Att'y Gen. No. 56-6425.

Term "residence" has been defined as being synonymous with home or domicile denoting the permanent dwelling place to which a party, when absent, intends to return and also as "that place wherein he legally resides and has his domicile and from which, when temporarily absent, he intends to return." 1956 Op. Att'y Gen. No. 55-6208.

No residence for those on lands over which federal government has control. — On any lands over which the United States government has acquired exclusive control, except for the purpose of service of civil and criminal process, no residence can be acquired for the purpose of voting. 1953 Op. Att'y Gen. No. 53-5841.

Am. Jur. 2d, A.L.R. and C.J.S. references. — 25 Am. Jur. 2d Elections § 163 et seq.

Significance of place where one votes or registers to vote on question as to his domicile or residence for other purposes, 107 A.L.R. 448.

Residence or inhabitancy within district or other political unit for which he is elected or appointed as a necessary qualification of officer or candidate, in absence of express provision to the effect, 120 A.L.R. 672.

Military service, voting by persons in, 140 A.L.R. 1100, 147 A.L.R. 1443, 148 A.L.R. 1402, 149 A.L.R. 1466, 150 A.L.R. 1460, 151 A.L.R. 1464, 152 A.L.R. 1459, 153 A.L.R. 1434, 154 A.L.R. 1459, 155 A.L.R. 1459.

Domicile or residence of person in the armed forces, 149 A.L.R. 1471, 150 A.L.R. 1468, 151 A.L.R. 1468, 152 A.L.R. 1471, 153 A.L.R. 1442, 155 A.L.R. 1466, 156 A.L.R. 1465, 157 A.L.R. 1462, 158 A.L.R. 1474.

State voting rights of residents of federal military establishment, 34 A.L.R.2d 1193.

Absentee voters' laws: validity of, 97 A.L.R.2d 218.

Absentee voters' laws: construction and effect of, 97 A.L.R.2d 257.

Residence or domicile of student or teacher for purpose of voting, 98 A.L.R.2d 488, 44 A.L.R.3d 797.

29 C.J.S. Elections §§ 19 to 25.

1-1-7.1. Residence for purpose of candidacy and signing of petitions; rule for determining.

For the purpose of determining the residence of a person desiring to be a candidate for the nomination or election to an office under the provisions of the Election Code [Chapter 1 NMSA 1978] or for the purpose of determining the residence of any signer of a petition required by the Election Code, permanent residence shall be resolved in favor of that place shown on the person's certificate of registration as his permanent residence, provided the person resides on the premises.

History: 1978 Comp., § 1-1-7.1, enacted by Laws 1979, ch. 378, § 1; 1985, ch. 207, § 1; 1993, ch. 314, § 1; 1993, ch. 316, § 1.

ANNOTATIONS

Cross references. — For rules for determining residency for voting, see 1-1-7 NMSA 1978.

For elections covered by this chapter, see 1-1-19 NMSA 1978.

1993 amendments. — Identical amendments to this section were enacted by Laws 1993, ch. 314, § 1 and Laws 1993, ch. 316, § 1, both effective June 18, 1993, which substituted "certificate" for "affidavit" near the end of the section. The section was set out as amended by Laws 1993, ch. 316, § 1. See 12-1-8 NMSA 1978.

Multiple residences not precluded. — This section and 1-1-7 NMSA 1978 merely codify the supreme court's pronouncement in *State ex rel. Magee v. Williams*, 1953-NMSC-082, 57 N.M. 588, 261 P.2d 131, and do not preclude the possibility of multiple residences. *Apodaca v. Chavez*, 1990-NMSC-028, 109 N.M. 610, 788 P.2d 366.

Family home as permanent residence. — Political candidate's Santa Fe county family home remained his permanent residence, even though he maintained a home in Rio Arriba county where he resided with his wife and two children. *Apodaca v. Chavez*, 1990-NMSC-028, 109 N.M. 610, 788 P.2d 366.

Am. Jur. 2d, A.L.R. and C.J.S. references. — 26 Am. Jur. 2d Elections §§ 255 et seq., 267 et seq.

29 C.J.S. Elections §§ 110, 114, 130.

1-1-7.2. Petitions; nominations; signatures to be counted.

A. A person who signs a nominating petition shall sign only one petition for the same office unless more than one candidate is to be elected to that office, and in that case, a person may sign not more than the number of nominating petitions equal to the number of candidates to be elected to the office.

B. A person who signs a nominating petition shall indicate the person's registration address. If the person does not have a standard street address, the person may provide the mailing address as shown on the person's certificate of registration.

C. A signature shall be counted on a nominating petition unless there is evidence presented that the petition does not provide the information required by the nominating petition for each person signing or the person signing:

(1) is not a voter of the state, district, county or area to be represented by the office for which the person seeking the nomination is a candidate;

(2) has signed more than one petition for the same office, except as provided in Subsection A of this section, and if the person has signed more than one petition for the same office and in the same election cycle, none of the challenged signatures from that person shall count toward the total number of signatures required for any candidate for that office;

(3) has signed one petition more than once, in which case only one signature from that person shall count toward the total number of signatures required for that candidate for office;

(4) in a primary election, is not of the same political party as the candidate named in the nominating petition as shown by the signer's certificate of registration; or

(5) is not the person whose name appears on the nominating petition.

D. The procedures set forth in this section shall be used to validate signatures on any petition required by the Election Code, except that Paragraph (4) of Subsection C of this section

shall not apply to petitions filed by unaffiliated candidates or petitions filed by candidates of minor political parties.

E. No later than January 1, 2024, the secretary of state shall implement a secure internet application, in addition to the paper circulation process, to gather electronic signatures in accordance with rules developed by the secretary of state. The secure internet application shall provide for the ability to verify that a person signing the petition is a registered voter and is eligible to sign the petition for a particular candidate.

History: 1953 Comp., § 3-8-24.2, enacted by Laws 1973, ch. 228, § 5; 1975, ch. 255, § 109; 1975, ch. 295, § 16; 1979, ch. 378, § 7; 1985, ch. 207, § 8; 1993, ch. 314, § 47; 1993, ch. 316, § 47; 1999, ch. 267, § 27; 2011, ch. 137, § 58; 2017, ch. 101, § 10; 1978 Comp., § 1-8-31, recompiled and amended as § 1-1-7.2 by Laws 2019, ch. 212, § 9; 2023, ch. 39, § 4.

ANNOTATIONS

Recompilations. — Laws 2019, ch. 212, § 9 recompiled and amended former 1-8-31 NMSA 1978 as 1-1-7.2 NMSA 1978, effective April 3, 2019.

The 2023 amendment, effective June 16, 2023, required the secretary of state to implement a secure internet application to gather electronic signatures, which shall provide for the ability to verify that a person signing the petition is a registered voter and is eligible to sign the petition for a particular candidate; and added Subsection E.

The 2019 amendment, effective April 3, 2019, revised the procedures for counting signatures on a nominating petition; in the section heading, deleted "Nominating petition" and added "Petitions; nominations"; in Subsection C, after "evidence presented that", added "the petition does not provide the information required by the nominating petition for each person signing or", deleted former Paragraph C(1) and redesignated former Paragraphs C(2) and C(3) as Paragraphs C(1) and C(2), in Paragraph C(2), after "Subsection A of this section", deleted "or has signed one petition more than once" and added the remainder of the paragraph, added a new Paragraph C(3), in Paragraph C(4), added "in a primary election"; and deleted former Subsections D and E and redesignated former Subsection F as Subsection D.

The 2017 amendment, effective June 16, 2017, changed the requirements for the invalidation of nominating petitions; in the catchline, deleted "Primary Election Law"; in Subsection C, deleted Paragraph C(1), which stated "was not a registered member of the candidate's political party ten days prior to the filing of the nominating petition", and redesignated the succeeding paragraphs accordingly; in Subsection D, provided paragraph designations for each item that must be listed at the top of a nominating petition, in Paragraph D(2), after "the candidate's name", deleted "the candidate's address, the candidate's county of residence and", in Paragraph D(3), after "office sought by the candidate", deleted "which shall include", and added "and", in Paragraph D(4), after "the district", deleted "or division", after "office sought", added "or", and after "if", deleted "applicable" and added "the office sought is a judicial division office within a judicial district, the judicial division number"; designated the last sentence in former Subsection D as Subsection E and redesignated former Subsection E as Subsection F; in Subsection E, added "With or without a showing of fraud or reasonable opportunity for fraud", after "invalid if any of the", deleted "preceding", after "information", added "required by Subsection D of this section", after "not listed", added "on the petition", and after "if any of the",

deleted "preceding" and added "required"; and in Subsection F, after "except that", deleted "Paragraphs (1) and (5)" and added "Paragraph (4)".

The 2011 amendment, effective July 1, 2011, added Subsection D to list the information that is required to be listed on the nominating petition before it is signed by a voter.

The 1999 amendment, effective June 18, 1999, added Subsection B, and redesignated subsequent subsections accordingly; in Subsection C, added Paragraph (1), redesignated subsequent paragraphs accordingly, and added the language ending "the person is qualified" at the beginning of Paragraph (2); and added the exception to Subsection D.

The 1993 amendment, effective June 18, 1993, substituted "certificate" for "affidavit" in Subsection B(3).

Burden of proof. — The burden is on the challenger to demonstrate that specific signatures should not be counted in a primary election nominating petition. *Ruiz v. Vigil-Giron*, 2008-NMSC-063, 145 N.M. 280, 196 P.3d 1286.

Failure to fill in entire line. — This section does not include as a reason for disqualification the failure to fill in all blanks in a nominating petition. *Simmons v. McDaniel*, 1984-NMSC-049, 101 N.M. 260, 680 P.2d 977 (decided prior to 1999 amendment).

Scope of section. — Although the title of this section is "Primary Election Law; nominating petition; signatures to be counted," it is obvious from the explicit language of Subsection C [now Subsection D] that the legislature intended this section to apply to all petitions required by the Election Code, including ballot access petitions. *Workers World Party v. Vigil-Giron*, 693 F. Supp. 989 (D.N.M. 1988).

Variance between petition and registration. — This section does not include as a reason for disqualification the failure to provide on the petition the signatory's name or address printed as registered. Therefore, where a county clerk automatically excluded signatures of registered voters whose names and addresses on the petitions varied somewhat or differed from their affidavits of registration, there was a failure to comply with the statutory requirements. *Workers World Party v. Vigil-Giron*, 693 F. Supp. 989 (D.N.M. 1988).

Signature to contain address, etc., to be valid. — Any signature on a nominating petition not containing the address, county and precinct number of the elector is invalid. 1952 Op. Att'y Gen. No. 52-5486 (opinion rendered under former law).

1-1-8. Election returns.

As used in the Election Code [Chapter 1 NMSA 1978], "election returns" means the certificate of the precinct board [election board] showing the total number of votes cast for each candidate, or for or against each proposed constitutional amendment or other question, and may include statements of canvass, signature rosters, poll books, tally books, machine printed returns and, in any canvass of returns for county candidates, the original certificates of registration in the possession of the county clerk, together with the copies of certificates of registration in the office of the county clerk.

History: 1953 Comp., § 3-1-7, enacted by Laws 1969, ch. 240, § 7; 1977, ch. 222, § 2; 1993, ch. 314, § 2; 1993, ch. 316, § 2.

ANNOTATIONS

Bracketed material. — The bracketed material was inserted by the compiler and is not part of the law.

Laws 2019, ch. 212, § 283, effective April 3, 2019, provided that references in the Election Code to "precinct board", shall be deemed to be references to "election board", as that term is defined in Section 1-1-13 NMSA 1978.

1993 amendments. — Identical amendments to this section were enacted by Laws 1993, ch. 314, § 2 and Laws 1993, ch. 316, § 2, both effective June 18, 1993, which substituted "certificates" for "affidavits" following "original" and "copies of certificates" for "duplicate affidavits". The section was set out as amended by Laws 1993, ch. 316, § 2. See 12-1-8 NMSA 1978.

Actual ballots not included. — The county canvassing board is limited by 1-13-4 and 1-13-5 NMSA 1978 to examining only the "election returns." This does not include the actual ballots. *Weldon v. Sanders*, 1982-NMSC-136, 99 N.M. 160, 655 P.2d 1004.

Copies of registration lists not included. — Under former Election Code, definition of "returns" did not include certified copies of registration lists filed with secretary of state. *Chavez v. Hockenhull*, 1934-NMSC-093, 39 N.M. 79, 39 P.2d 1027.

Poll lists and tally sheets were considered part of returns for purposes of former provisions dealing with correction of returns and county canvassing board certificates by order of state canvassing board. *Chavez v. Hockenhull*, 1934-NMSC-093, 39 N.M. 79, 39 P.2d 1027.

Am. Jur. 2d, A.L.R. and C.J.S. references. — Injunction against canvassing of votes and declaring result of election, 1 A.L.R.2d 588.

1-1-9. Recompiled.

History: 1953 Comp., § 3-1-8, enacted by Laws 1969, ch. 240, § 8; 1975, ch. 255, § 3; 1983, ch. 258, § 1; 1995, ch. 124, § 1; § 1-1-9 NMSA 1978, recompiled and amended as § 1-7-7 by Laws 2011, ch. 137, § 48.

ANNOTATIONS

Recompilations. — Laws 2011, ch. 137, § 48 recompiled and amended 1-1-9 NMSA 1978 as 1-7-7 NMSA 1978, effective July 1, 2011.

1-1-10. Qualified political party.

As used in the Election Code [Chapter 1 NMSA 1978], "qualified political party" means a political party that has complied with the provisions of Section 1-7-2 NMSA 1978.

History: 1953 Comp., § 3-1-9, enacted by Laws 1969, ch. 240, § 9; 1977, ch. 222, § 3; 1981, ch. 140, § 1; 1989, ch. 392, § 1.

1-1-11. Precinct.

As used in the Election Code, "precinct" means a designated division of a county for election and redistricting purposes.

History: 1953 Comp., § 3-1-10, enacted by Laws 1969, ch. 240, § 10; 2019, ch. 212, § 5.

ANNOTATIONS

Cross references. — For nature of precinct, see 1-3-1 NMSA 1978.

The 2019 amendment, effective April 3, 2019, revised the definition of "precinct" as used in the Election Code; and after "county for election", added "and redistricting", and after "purposes", deleted the remainder of the section, which related to a polling place and precinct board for each precinct.

Polling place required. — If a precinct, or any portion thereof, is involved in any election whatsoever in this state, at least one polling place must be provided therein, and all of the voters in that precinct involved in the election must be permitted and required to vote in that polling place. 1954 Op. Att'y Gen. No. 54-6067 (opinion rendered under former law).

1-1-12. Consolidated precinct.

A. As used in the Election Code, "consolidated precinct" means a single precinct or the combination of two or more precincts into one polling place for the purpose of establishing a voter convenience center pursuant to the provisions of Section 1-3-4 NMSA 1978.

B. When consolidated precincts are used to establish a voter convenience center in a statewide election, references to "precincts" in the voting process shall be applicable to consolidated precincts.

History: 1953 Comp., § 3-1-11, enacted by Laws 1969, ch. 240, § 11; 1975, ch. 255, § 4; 2011, ch. 131, § 1; 2011, ch. 137, § 7; 2019, ch. 212, § 6.

ANNOTATIONS

Cross references. — For consolidation of precincts, see 1-3-4 and 1-3-5 NMSA 1978.

Temporary provisions. — Laws 2023, ch. 39, § 97 provided that each election day polling place established in the 2021 polling place resolution for each county or any election day polling place established by any subsequent amendment to such a resolution shall operate as a voter convenience center for all statewide elections in calendar year 2023.

The 2019 amendment, effective April 3, 2019, revised the definition of "consolidated precinct" as used in the Election Code; in Subsection A, after "means", added "a single precinct or", and after "polling place", added "for the purpose of establishing a voter convenience center"; and in

Subsection B, after "are used", added "to establish a voter convenience center", and after the next occurrence of "in", deleted "an" and added "a statewide".

The 2011 amendment, effective July 1, 2011, corrected the statutory reference to the method of consolidating precincts and clarifies the meaning of "precincts".

Laws 2011, ch. 131, § 1 and Laws 2011, ch. 137, § 7 enacted identical amendments to this section. The section was set out as amended by Laws 2011, ch. 137, § 7. See 12-1-8 NMSA 1978.

Constitutional requisite for consolidation. — Any statute providing for consolidation of precincts in any given election is void and unconstitutional unless the old precincts are abolished and a new precinct, including the area desired to be consolidated, is legally created. 1954 Op. Att'y Gen. No. 54-6067 (opinion rendered under former law).

1-1-13. Election board.

As used in the Election Code, "election board" means the judges of election in accordance with Article 7, Section 1 of the constitution of New Mexico and the election clerks that are appointed pursuant to Section 1-2-12 NMSA 1978 and serving in a polling place or tallying ballots that have been cast in a statewide or special election.

History: 1953 Comp., § 3-1-12, enacted by Laws 1969, ch. 240, § 12; 2011, ch. 137, § 8; 2019, ch. 212, § 7.

ANNOTATIONS

Cross references. — For appointment and qualification of board members, see 1-2-6 and 1-2-7 NMSA 1978.

For composition of board, see 1-2-12 NMSA 1978.

For school of instruction, see 1-2-17 NMSA 1978.

The 2019 amendment, effective April 3, 2019, changed the name of "precinct board" to "election board", and defined "election board" as used in the Election Code; in the section heading, deleted "precinct" and added "election"; after "Election Code", deleted "precinct" and added "election", after "board", deleted "or 'poll workers'", after "means the", deleted "appointed election officials" and added "judges of election in accordance with Article 7, Section 1 of the constitution of New Mexico and the election clerks that are appointed pursuant to Section 1-2-12 NMSA 1978 and", and after "serving", deleted "a single precinct, a consolidated precinct, an absent voter precinct or an alternate voting location" and added "in a polling place or tallying ballots that have been cast in a statewide or special election".

The 2011 amendment, effective July 1, 2011, defined "poll workers" and added absent voter precincts and alternative voting locations to the list of voting places.

"Precinct board" does not include county clerk. — For the purposes of the Election Code, "precinct board" means the appointed election officials serving a single precinct or a

consolidated precinct and does not include the county clerk. *Gunaji v. Macias*, 2001-NMSC-028, 130 N.M. 734, 31 P.3d 1008.

1-1-14. Publication.

A. As used in the Election Code, "publication", unless otherwise provided in the constitution of New Mexico or the Election Code, means publication for the required number of times in a newspaper of general circulation in the county. "Publication in Spanish" means publication for the required number of times in an official Spanish language newspaper as set forth in Section 14-11-13 NMSA 1978 or any other Spanish language newspaper that meets the requirements of Section 14-11-2 NMSA 1978 if such newspaper exists in the county and is of general circulation in the county.

B. In addition to publication as required by Subsection A of this section, any publication required of:

(1) the secretary of state shall also be posted in the office of the secretary of state and on the secretary of state's web site; and

(2) the county clerk shall also be posted in the office of the county clerk and on the county's web site, if the county maintains a web site.

History: 1953 Comp., § 3-1-13, enacted by Laws 1969, ch. 240, § 14; 1975, ch. 255, § 5; 1983, ch. 4, § 1; 2011, ch. 137, § 9.

ANNOTATIONS

The 2011 amendment, effective July 1, 2011, provided for posting the publication in the offices and on the web sites of the secretary of state and county clerks.

1-1-15. Posting.

A. As used in the Election Code, "posting" means posting from the date a posting is required until forty-five days after adjournment of the state or county canvassing board or until forty-five days following any recount, contest or other judicial inquiry, whichever is later.

B. A posting as described in Subsection A of this section is satisfied by posting on the website and in a public area in the office of:

(1) the secretary of state, when the secretary of state has the duty to post; or

(2) the county clerk, when the county clerk has the duty to post.

History: 1953 Comp., § 3-1-14, enacted by Laws 1969, ch. 240, § 15; 2011, ch. 137, § 10; 2019, ch. 212, § 8.

ANNOTATIONS

The 2019 amendment, effective April 3, 2019, revised the definition of "posting" as used in the Election Code; in Subsection A, after "means posting", deleted "for not less than seven days prior to an election or to an action to be taken" and added "from the date a posting is required until forty-five days after adjournment of the state or county canvassing board or until forty-five days following any recount, contest or other judicial inquiry, whichever is later"; and in Subsection B, in the introductory clause, after "satisfied by posting", added "on the website and in a public area", in Paragraph B(1), after "secretary of state", deleted "and on the secretary of state's web site", and in Paragraph B(2), after "county clerk", deleted "and on the county's web site, if the county maintains a web site".

The 2011 amendment, effective July 1, 2011, provided for posting in the offices and on the web sites of the secretary of state and county clerks.

Am. Jur. 2d, A.L.R. and C.J.S. references. — Public place defined: what is "public place" within requirement as to posting of election notices, 90 A.L.R.2d 1210.

1-1-16. Registration officer.

As used in the Election Code, "registration officer" means the secretary of state, a county clerk, a clerk's authorized deputy, a clerk-authorized member of an election board or a state employee performing registration duties in accordance with the federal National Voter Registration Act of 1993 or Section 1-4-5.2 NMSA 1978.

History: 1953 Comp., § 3-1-15, enacted by Laws 1969, ch. 240, § 16; 1995, ch. 198, § 1; 2005, ch. 270, § 4; 2023, ch. 39, § 5.

ANNOTATIONS

Cross references. — For application for registration to be made to registration officer only, see 1-4-5 NMSA 1978.

For the National Voter Registration Act of 1993, see 40 U.S.C. Sections 1973gg et seq.

The 2023 amendment, effective June 16, 2023, revised the definition of "registration officer"; added "clerk-authorized" preceding "member", added "an election" preceding "board", and after "board", deleted "of registration".

The 2005 amendment, effective July 1, 2005, provided that "registration officer" included the secretary of state, the authorized deputy of a county clerk, and a state employee performing registration duties in accordance with the federal National Voter Registration Act of 1993 or Section 1-4-5.2 NMSA 1978.

The 1995 amendment, effective April 6, 1995, inserted "or" following "deputy" and deleted "or a deputy registration officer" from the end.

1-1-16.1. Registration agent.

As used in the Election Code [Chapter 1 NMSA 1978], "registration agent" means a state or federal employee who provides voter registration at a state agency, or a tribal registration agent

office, or any other individual who assists another person in completion of a voter registration application.

History: Laws 2005, ch. 270, § 3.

ANNOTATIONS

Effective dates. — Laws 2005, ch. 270, § 81 made the act effective July 1, 2005.

1-1-16.2. New registrant.

As used in the Election Code [Chapter 1 NMSA 1978], "new registrant" means a person who was not registered to vote in the state at the time the person registered to vote.

History: Laws 2005, ch. 270, § 2.

ANNOTATIONS

Effective dates. — Laws 2005, ch. 270, § 81 made the act effective July 1, 2005.

1-1-17. Person authorized to administer oaths.

As used in the Election Code [Chapter 1 NMSA 1978], "person authorized to administer oaths" means any person empowered by the laws of any state, the federal government or of any foreign country to administer oaths.

History: 1953 Comp., § 3-1-16, enacted by Laws 1969, ch. 240, § 17.

ANNOTATIONS

Cross references. — For false swearing, see 1-20-10 NMSA 1978.

For oath administered by legislative officers, see 2-1-2 NMSA 1978.

For oath administered by chairman of board of county commissioners, see 4-38-11 NMSA 1978.

For oath administered by county surveyor, see 4-42-3 NMSA 1978.

For oath administered by county clerks, district court clerks, probate court clerks, secretary of state, etc., see 14-13-3 NMSA 1978.

For oath administered by magistrates, see 35-3-1 NMSA 1978.

For oath administered by highway commission, see 67-3-10 NMSA 1978.

1-1-18. Oath includes affirmation.

As used in the Election Code [Chapter 1 NMSA 1978], "oath" includes affirmation in all cases where an affirmation may be substituted for an oath, and in like cases the word "swear" includes affirm.

History: 1953 Comp., § 3-1-17, enacted by Laws 1969, ch. 240, § 18.

ANNOTATIONS

Cross references. — For executing false statement of eligibility to vote as perjury, see 1-12-8 NMSA 1978.

For false swearing to secure assistance in voting as perjury, see 1-12-13 NMSA 1978.

1-1-19. Elections covered by code.

A. The Election Code applies to the following:

- (1) general elections;
- (2) primary elections;
- (3) special elections;
- (4) elections to fill vacancies in the office of United States representative;
- (5) local elections included in the Local Election Act; and
- (6) recall elections of county officers, school board members or applicable municipal officers.

B. To the extent procedures are incorporated or adopted by reference by separate laws governing such elections or to the extent procedures are not specified by such laws, certain provisions of the Election Code shall also apply to special district elections not covered by the Local Election Act [Chapter 1, Article 22 NMSA 1978].

History: 1953 Comp., § 3-1-18, enacted by Laws 1969, ch. 240, § 19; 1975, ch. 255, § 6; 1977, ch. 222, § 4; 1985, ch. 168, § 1; 2018, ch. 79, § 1.

ANNOTATIONS

Cross references. — For primary elections, see 1-8-10 to 1-8-44 NMSA 1978.

For election of representative in congress, see 1-15-17 NMSA 1978.

For school district elections, see 1-22-1 NMSA 1978 et seq.

For municipal elections, see 3-8-1 NMSA 1978.

The 2018 amendment, effective July 1, 2018, added certain recall elections to the list of elections covered by the Election Code, and made conforming changes as a result of the enactment of the Local Election Act; in Subsection A, Paragraph A(3), deleted "statewide" preceding "special elections", in Paragraph A(4), after "in the office of", added "United States", after "representative", deleted "in congress; and", in Paragraph A(5), deleted "school district" and added "local", and after "elections", added "included in the Local Election Act; and", and added Paragraph A(6); and in Subsection B, deleted former Paragraph B(1) and paragraph designation "(2)", after "shall also apply to", added "special district officer or special district bond or other", and after "special district elections", added "not covered by the Local Election Act".

Application of the Election Code to public improvement district formation elections. — The Election Code's thirty-day limitation period for filing a complaint to contest an election applies to a public improvement district formation election under the Public Improvement District Act. *Glaser v. LeBus*, 2012-NMSC-012, 276 P.3d 959.

Where the petitioners filed a complaint to contest an election to form a public improvement district under the Public Improvement District Act thirteen months after the election, the action was barred by the thirty-day limitation for filing a complaint to contest an election under the Election Code. *Glaser v. LeBus*, 2012-NMSC-012, 276 P.3d 959.

Scope of section. — County official recall elections are not listed in this section. *Sparks v. Graves*, 2006-NMCA-030, 139 N.M. 143, 130 P.3d 204.

Write-in candidates in conservancy district elections. — Conservancy district board rule prohibiting write-in candidates for election to the board is invalid as contrary to the legislative intent expressed by this section, making the Election Code, Chapter 1, NMSA 1978, applicable to special district elections and to the constitutional mandate in N.M. Const., art. II, § 8 of "free and open" elections. *Gonzales v. Middle Rio Grande Conservancy Dist.*, 1987-NMCA-125, 106 N.M. 426, 744 P.2d 554.

Public improvement district formation elections. — The formation election provisions of the Public Improvement District Act incorporate the election contest procedures of the Election Code. *Glaser v. LeBus*, 2012-NMCA-028, 274 P.3d 114.

Special school bond election is not "special election" or "municipal election" within statutes so that the word "election" should apply to all special and municipal elections and so that no person should vote in any special or municipal election unless registered, and voters otherwise qualified were entitled to vote in special school bond election, although not registered. *Johnston v. Board of Educ.*, 1958-NMSC-141, 65 N.M. 147, 333 P.2d 1051.

Words "general election," used in act providing for method of changing name of a municipality, contemplated the biennial election for choosing state and county officials and national representatives in congress. *Benson v. Williams*, 1952-NMSC-074, 56 N.M. 560, 246 P.2d 1046.

Elections for board of directors of conservancy district. — A person cannot stand for election for the board of directors of the Middle Rio Grande Conservancy District if that person resides in a county in which part of the district is located but outside the district itself. 1988 Op. Att'y Gen. No. 88-34.

1-1-20. Major fractions.

In any place in the Election Code [Chapter 1 NMSA 1978] requiring counting or computation of numbers, any fraction or decimal greater than one-half of a whole number shall be counted as a whole number.

History: 1978 Comp., § 1-1-20, enacted by Laws 1979, ch. 378, § 2.

1-1-21. County chairman.

In the event that a county chairman is designated a duty under the Election Code [Chapter 1 NMSA 1978] and a political party in a county does not have a county chairman to carry out the designated duty and where there are no other provisions delegating the duty assigned to the county chairman, the state chairman of the political party shall carry out the designated duty.

History: Laws 1995, ch. 124, § 18.

1-1-22. Computation of time; deadlines.

For the purpose of the Election Code, time periods of less than eleven days shall be computed as calendar days; provided, however, that if an actual deadline falls on a weekend or state-recognized holiday, the next business day shall be the deadline, unless the deadline is expressed as a day of the week, in which case that day remains the actual deadline.

History: Laws 2005, ch. 270, § 1; 2015, ch. 145, § 6.

ANNOTATIONS

Cross references. — For computation of time, see 12-2A-7 NMSA 1978.

The 2015 amendment, effective July 1, 2015, clarified the computation of time for purposes of deadlines when the deadline falls on a weekday; after "deadline", added "unless the deadline is expressed as a day of the week, in which case that day remains the actual deadline".

1-1-23. Unique identifier.

As used in the Election Code [Chapter 1 NMSA 1978], "unique identifier" means a randomly generated series of numbers, letters or symbols assigned to a voter, which shall not be the voter's social security number or date of birth.

History: Laws 2005, ch. 270, § 5; 2007, ch. 337, § 4.

ANNOTATIONS

The 2007 amendment, effective July 1, 2007, defined "unique identifier" as a randomly generated series of numbers, letters or symbols assigned to a voter, which shall not be the voter's birth date.

1-1-24. Required voter identification.

As used in the Election Code [Chapter 1 NMSA 1978], "required voter identification" means any of the following forms of identification as chosen by the voter:

A. a physical form of identification, which may be:

(1) an original or copy of a current and valid photo identification with or without an address, which address is not required to match the voter's certificate of registration; or

(2) an original or copy of a utility bill, bank statement, government check, paycheck, student identification card or other government document, including identification issued by an Indian nation, tribe or pueblo, that shows the name and address of the person, the address of which is not required to match the voter's certificate of registration; or

B. a verbal or written statement by the voter of the voter's name, registration address and year of birth; provided, however, that the statement of the voter's name need not contain the voter's middle initial or suffix.

History: Laws 2005, ch. 270, § 6; 2008, ch. 59, § 1.

ANNOTATIONS

The 2008 amendment, effective May 14, 2008, deleted "voter identification card" in Paragraph (1) of Subsection A; deleted "unique identifier" in Subsection B; and added "registration address" in Subsection B.

1-1-25. Voter information.

As used in the Election Code [Chapter 1 NMSA 1978], "voter information" means a document containing the person's name, address and precinct number that is issued by the county clerk or the secretary of state.

History: Laws 2005, ch. 270, § 7; 2007, ch. 337, § 5.

ANNOTATIONS

The 2007 amendment, effective July 1, 2007, changed "voter identification card" to "voter information" and provided that voter information may be issued by the secretary of state.

1-1-26. Petitions; nominations; requirements before signed by voters; invalidated petitions.

A. The following information shall be listed in the appropriate space at the top of a nominating petition before the petition has been signed by a voter:

- (1) the candidate's name as it appears on the candidate's certificate of registration;
- (2) the address where the candidate resides;

(3) the office sought by the candidate;

(4) if the office sought is a districted office or a division within a judicial district or has been assigned a position number for purposes of the election, the district, division or position number of the office sought;

(5) if the office sought will be on the general election ballot, the party affiliation of the candidate or that the candidate is unaffiliated with any qualified political party; and

(6) if the office sought will be nominated at a political party primary, the party affiliation of voters permitted to sign the petition.

B. With or without a showing of fraud or a reasonable opportunity for fraud, a nominating petition page, including all signatures on the petition page, shall be invalid if any of the information required by Subsection A of this section is not listed on the petition before the petition page is signed by a voter or if any of the required information is subsequently changed in any way.

History: Laws 2019, ch. 212, § 13.

ANNOTATIONS

Emergency clauses. — Laws 2019, ch. 212, § 286, contained an emergency clause and was approved April 3, 2019.

Form of nominating petitions. — Where petitioner sought preprimary designation as a candidate for the office of United States representative from New Mexico's third congressional district at the 2020 republican party pre-primary convention, and where petitioner filed forty-nine nominating petitions containing over 700 signatures, along with her declaration of candidacy, and where the secretary of state invalidated the signatures on forty-four of petitioner's nominating petitions because those petitions omitted the heading "2020 Primary Nominating Petition", which the secretary of state deemed to be critical information required by law, the secretary of state's refusal to accept any nominating petition that did not have the heading at issue was improper because the substance of the invalidated nominating petitions conformed with the form prescribed by § 1-8-30 NMSA 1978 and therefore met the requirements of the Election Code. *Morper v. Toulouse Oliver*, 2020-NMSC-012.

1-1-27. Public records; disclosure-procedure.

A. Where the Election Code provides for disclosure or nondisclosure of public records relating to elections, the provisions of the Election Code shall apply, and the provisions of the Inspection of Public Records Act [Chapter 14, Article 2 NMSA 1978] shall not be applicable to the disclosure or nondisclosure.

B. For any public records relating to elections where the Election Code does not provide for disclosure or nondisclosure of the public records, the provisions of the Inspection of Public Records Act shall apply.

History: 1978 Comp., § 1-1-27, enacted by Laws 2023, ch. 39, § 6.

ANNOTATIONS

Effective dates. — Laws 2023, ch. 39 contained no effective date provision, but, pursuant to N.M. Const., art. IV, § 23, was effective June 16, 2023, 90 days after adjournment of the legislature.

1-1-27.1. Public official home address confidentiality; rulemaking.

The secretary of state shall promulgate rules to allow an elected or appointed public official to designate as confidential the public official's home address as stated in election- and financial-related disclosures filed with the secretary of state or county clerks. A home address designated as confidential pursuant to this section is exempt from disclosure pursuant to an Inspection of Public Records Act [Chapter 14, Article 2 NMSA 1978] request and shall not be published on a governmental website. Nothing in this section or the secretary of state's rule shall prohibit the disclosure of the public official's home address if relevant to a judicial proceeding.

History: Laws 2023, ch. 39, § 1.

ANNOTATIONS

Effective dates. — Laws 2023, ch. 39 contained no effective date provision, but, pursuant to N.M. Const., art. IV, § 23, was effective June 16, 2023, 90 days after adjournment of the legislature.

1-1-28. Real-time synchronization.

As used in the Election Code, "real-time synchronization" means that the internet connection at a voting location is able to synchronize voting data with the office of the county clerk in real time.

History: Laws 2023, ch. 39, § 2.

ANNOTATIONS

Effective dates. — Laws 2023, ch. 39 contained no effective date provision, but, pursuant to N.M. Const., art. IV, § 23, was effective June 16, 2023, 90 days after adjournment of the legislature.

1-1-29. Under color of law.

As used in the Election Code, "under color of law" means acting or purporting to act in the performance of official duties, under the authority of a statute, ordinance, regulation, proclamation or order of the United States or this state.

History: 1978 Comp., § 1-1-29, enacted by Laws 2026, ch. 58, § 1.

ANNOTATIONS

Effective dates. — Laws 2026, ch. 58 contained no effective date provision, but, pursuant to N.M. Const., art. IV, § 23, was effective May 20, 2026, 90 days after adjournment of the legislature.

1-1-30. Peace officer.

As used in the Election Code, "peace officer" means any full-time salaried or certified part-time salaried officer of a police or sheriff's department that is part of or administered by the state or any political subdivision of the state who by virtue of office or public employment is vested by law with the duty to maintain the public peace.

History: 1978 Comp., § 1-1-30, enacted by Laws 2026, ch. 58, § 2.

ANNOTATIONS

Effective dates. — Laws 2026, ch. 58 contained no effective date provision, but, pursuant to N.M. Const., art. IV, § 23, was effective May 20, 2026, 90 days after adjournment of the legislature.

ARTICLE 2

Election Officers and Boards

1-2-1. Secretary of state; chief election officer; rules.

A. The secretary of state is the chief election officer of the state.

B. The secretary of state shall:

(1) obtain and maintain uniformity in the application, operation and interpretation of the Election Code; and

(2) subject to the State Rules Act [Chapter 14, Article 4 NMSA 1978], make rules pursuant to the provisions of, and necessary to carry out the purposes of, the Election Code and shall furnish to the county clerks copies of such rules; provided that no rule is adopted or amended within the sixty-three days before a primary or a general election.

C. No forms or procedures shall be used in any election held pursuant to the Election Code without prior approval of the secretary of state. If a form is authorized or required by the Election Code and issued or approved by the secretary of state, only the form issued or approved by the secretary may be used.

History: 1953 Comp., § 3-2-1, enacted by Laws 1969, ch. 240, § 22; 1971, ch. 317, § 1; 1975, ch. 255, § 7; 1979, ch. 74, § 2; 2011, ch. 137, § 12; 2015, ch. 145, § 7; 2017, ch. 101, § 1; 2023, ch. 39, § 9.

ANNOTATIONS

Cross references. — For violation of Election Code by officers, see 1-20-23 NMSA 1978.

For legislature prescribing time, manner and place of voting, see N.M. Const., art. VII, § 1.

For bureau of elections created in secretary of state's office, see 8-4-5 NMSA 1978.

The 2023 amendment, effective June 16, 2023, provided that if a form is authorized or required by the Election Code and issued or approved by the secretary of state, only the form issued or approved by the secretary may be used; in Subsection C, added the last sentence of the subsection.

The 2017 amendment, effective June 16, 2017, changed the deadline for election code rule changes; in Subsection B, Paragraph B(2), after "amended within the", deleted "fifty-six" and added "sixty-three".

The 2015 amendment, effective July 1, 2015, removed the power of the secretary of state to bring such actions as deemed necessary, through the attorney general or district attorney having jurisdiction, for the enforcement of the provisions of the Election Code; in the catchline, after "rules", deleted "enforcement powers"; in Subsection A, after "officer of the state", deleted "and" and designated the remainder of the subsection as Subsection B, and redesignated the succeeding subsection accordingly; in Subsection B, added "The secretary of state"; in Paragraph (1) of Subsection B, after "Election Code;" added "and"; and deleted Paragraph (3) of Subsection B.

The 2011 amendment, effective July 1, 2011, prohibited rules from being adopted or amended within the fifty-six days before a primary or general election.

No power to change mandatory provisions. — The secretary of state does not have the power to change mandatory provisions of the Election Code. *Weldon v. Sanders*, 1982-NMSC-136, 99 N.M. 160, 655 P.2d 1004.

Form of nominating petitions. — Where petitioner sought preprimary designation as a candidate for the office of United States representative from New Mexico's third congressional district at the 2020 republican party pre-primary convention, and where petitioner filed forty-nine nominating petitions containing over 700 signatures, along with her declaration of candidacy, and where the secretary of state invalidated the signatures on forty-four of petitioner's nominating petitions because those petitions omitted the heading "2020 Primary Nominating Petition", which the secretary of state deemed to be critical information required by law, the secretary of state's refusal to accept any nominating petition that did not have the heading at issue was improper because the substance of the invalidated nominating petitions conformed with the form prescribed by § 1-8-30 NMSA 1978 and therefore met the requirements of the Election Code. *Morper v. Toulouse Oliver*, 2020-NMSC-012.

Am. Jur. 2d, A.L.R. and C.J.S. references. — 25 Am. Jur. 2d Elections § 89 et seq.

Arrest, immunity of election officers from criminal arrest, 1 A.L.R. 1160.

Effect of irregularity in performance of duties of election officials where all electors are given opportunity to express themselves freely, 133 A.L.R. 279.

Liability of public officers for breach of duty in respect of election or primary election laws, 153 A.L.R. 109.

1-2-1.1. Attorney general required to assist secretary of state; district attorneys required to assist secretary of state and county clerks.

A. The attorney general shall, upon request of the secretary of state, provide legal advice, assistance, services and representation as counsel in any action to enforce the provisions of the Election Code.

B. Upon the request of the secretary of state or a county clerk, the attorney general and the several district attorneys of the state shall assign investigators or lawyers to aid the secretary of state and county clerks to ensure the proper conduct of an election.

C. Each district attorney shall assign a lawyer to be the elections prosecutor for the judicial district or for each county in the judicial district. The district attorney shall communicate and maintain current the name and contact information of the assigned elections prosecutor to the secretary of state and to each county clerk in the judicial district. The assigned elections prosecutor shall receive from the county clerk in the prosecutor's county or judicial district referrals of suspected violations of the Election Code. The assigned elections prosecutor shall each month report in writing to the county clerk and the district attorney the status of each referral until the matter is concluded.

History: 1978 Comp., § 1-2-1.1, enacted by Laws 1979, ch. 74, § 3; 1981, ch. 159, § 1; 2015, ch. 145, § 8; 2018, ch. 79, § 2.

ANNOTATIONS

Cross references. — For the enforcement powers of the secretary of state, see 1-2-1 NMSA 1978.

The 2018 amendment, effective July 1, 2018, made conforming changes as a result of the repeal of the Municipal Election Code; and in Subsection A, after "provisions of the Election Code", deleted "and the Municipal Election Code".

Temporary provisions. — Laws 2018, ch. 79, § 174 provided that references in law to the Municipal Election Code and to the School Election Law shall be deemed to be references to the Local Election Act.

The 2015 amendment, effective July 1, 2015, provided for the attorney general to assist the secretary of state in any action to enforce the provisions of the Election Code, and required the attorney general and district attorneys to assist the county clerks to ensure the proper conduct of an election, and required each district attorney to assign a lawyer to be the elections prosecutor; in the catchline, after "Attorney general", deleted "and district attorneys", after "secretary of state;", added "district attorneys required to assist secretary of state and county clerks"; in Subsection A, after "The attorney general", deleted "and the several district attorneys of the state" and added "shall", after the first occurrence of "secretary of state", deleted "shall", after "provide", deleted "to the secretary of state", and after "Election Code", added "and the Municipal Election Code"; in Subsection B, after the first occurrence of "secretary of state", added "or a county clerk", after the second occurrence of "secretary of state", deleted "on

election day" and added "and county clerks", and after "proper conduct", deleted "the" and added "an"; and added Subsection C.

1-2-1.2. Secretary of state; service of process; actions related to elections.

For the purposes of any action filed in court challenging a procedure or provision of the Election Code, a petition or a candidacy or a post-election action initiated by any person, the secretary of state shall receive service of process, regardless of whether the secretary of state is a party to the action.

History: 1978 Comp., § 1-2-1.2, enacted by Laws 2023, ch. 39, § 10.

ANNOTATIONS

Effective dates. — Laws 2023, ch. 39 contained no effective date provision, but, pursuant to N.M. Const., art. IV, § 23, was effective June 16, 2023, 90 days after adjournment of the legislature.

1-2-2. Secretary of state; general duties.

The secretary of state shall:

A. generally supervise all elections by administering the Election Code [Chapter 1 NMSA 1978] in its statewide application;

B. prepare instructions for the conduct of election and registration matters in accordance with the laws of the state;

C. advise county clerks, boards of county commissioners and boards of registration as to the proper methods of performing their duties prescribed by the Election Code;

D. report possible violations of the Election Code of which the secretary of state has knowledge to the district attorney or the attorney general for prosecution;

E. cause to be published in book form and distributed to the county clerk of each county for use by precinct boards [election boards] a sufficient number of copies of the Election Code as it is from time to time amended and supplemented;

F. be responsible for the education and training of county clerks regarding elections;

G. be responsible for the education and training of voting machine technicians; and

H. assist the county clerks in the education and training of registration officers.

History: 1953 Comp., § 3-2-2, enacted by Laws 1969, ch. 240, § 23; 1975, ch. 255, § 8; 1995, ch. 198, § 2; 2005, ch. 270, § 10; 2011, ch. 137, § 13.

ANNOTATIONS

Bracketed material. — The bracketed material was inserted by the compiler and is not part of the law.

Laws 2019, ch. 212, § 283, effective April 3, 2019, provided that references in the Election Code to "precinct board", shall be deemed to be references to "election board", as that term is defined in Section 1-1-13 NMSA 1978.

Cross references. — For secretary providing instruction on procedures whereby precinct board shall determine identity of last person in line at time polls close, see 1-12-26 NMSA 1978.

For secretary advising state chairman regarding method of nominating and electing presidential electors, see 1-15-1 NMSA 1978.

The 2011 amendment, effective July 1, 2011, eliminated the secretary of state's obligation to assist in the recruitment and training of poll workers and other election workers and in the certification of presiding judges of precinct boards.

The 2005 amendment, effective July 1, 2005, in Subsection I, provided that the secretary of state shall assist county clerks in the recruitment and training of poll workers and other election workers and in the certification of the presiding judges of the precinct boards and deleted the former provision that the secretary of state shall assist in the education and training of precinct boards.

The 1995 amendment, effective April 6, 1995, deleted "deputy" preceding "registration" in Subsection I.

Mandamus appropriate on issue of proper way to conduct primary election. — Where petitioners, twenty-seven county clerks, and respondent, the New Mexico secretary of state, submitted a stipulated petition for an emergency writ to compel the secretary of state to mail absentee ballots directly to all registered voters in lieu of conducting in-person voting for the June 2020 primary election, claiming that the primary election was scheduled amidst a global pandemic and national statewide public health emergency, that in-person voting could not be conducted safely under those circumstances, and that the requested relief was necessary to protect the health of election workers, voters, and the general public, and where intervenors argued that the Election Code, §§ 1-1-1 to 1-26-6 NMSA 1978, does not allow elections to be conducted entirely by mail and that it would violate separation of powers principles for a non-legislative branch of government to implement an alternative election procedure, mandamus was appropriate because the case involved a fundamental constitutional question of great public importance, involved a legal rather than a factual dispute, and required an expeditious resolution. *State ex rel. Riddle v. Toulouse Oliver*, 2021-NMSC-018.

The New Mexico secretary of state had a nondiscretionary duty to ensure that the 2020 primary election held during a pandemic was conducted in compliance with the Election Code and executive and public health orders. — Where petitioners, twenty-seven county clerks, and respondent, the New Mexico secretary of state, submitted a stipulated petition for an emergency writ to compel the secretary of state to mail absentee ballots directly to all registered voters in lieu of conducting in-person voting for the June 2020 primary election, claiming that the primary election was scheduled amidst a global pandemic and national statewide public health emergency, that in-person voting could not be conducted safely under those circumstances, and that the requested relief was necessary to protect the health of election workers, voters, and the

general public, and where intervenors argued that the Election Code, §§ 1-1-1 to 1-26-6 NMSA 1978, does not allow elections to be conducted entirely by mail and that it would violate separation of powers principles for a non-legislative branch of government to implement an alternative election procedure, the New Mexico supreme court denied petitioners' and respondent's requested relief because the Election Code does not permit the secretary of state to mail absentee ballots directly to voters without a prior request from the voter, but the supreme court issued its writ of mandamus to compel the secretary of state to mail absentee ballot applications to every eligible voter in New Mexico, because the secretary of state had an affirmative duty to conduct elections in full compliance with the Election Code, which requires that all statewide primary and general elections offer both in-person voting and absentee voting options, and an affirmative duty to comply with all pandemic-related executive and public health orders, which required the secretary of state to take all lawful steps to minimize the spread of COVID-19. As the chief election officer of the state, respondent had a duty to manage the election in a manner that minimized the risk of spreading COVID-19 and in a manner that protected lives by helping voters stay home as much as possible. *State ex rel. Riddle v. Toulouse Oliver*, 2021-NMSC-018.

1-2-2.1. Administrative complaints; procedures.

A. The secretary of state shall adopt rules for an administrative procedure for hearing complaints on violations of the provisions of Title III of the federal Help America Vote Act of 2002, including provisions related to voting system standards, provisional voting procedures, voter registration procedures and operational standards of the statewide voter registration system.

B. A person who determines that there is a violation or that a violation is about to occur pursuant to this section may file a complaint with the secretary of state. Complaints may be consolidated by the secretary.

C. Complaints shall be in writing, signed and sworn by the person filing the complaint and notarized.

D. The hearing shall be on the record if the complainant requests.

E. If the hearing officer determines that there is a violation, an appropriate remedy shall be provided. If there is no violation, the complaint shall be dismissed and the results of the hearing made available to the public.

F. A final decision shall be made within ninety days of the filing of the complaint unless the complainant consents to extending the deadline. If the deadline is not met, the complaint shall be resolved within sixty days through alternative dispute resolution procedures established pursuant to the Governmental Dispute [Prevention] Resolution Act [Chapter 12, Article 8A NMSA 1978]. Records and materials from the hearing shall be available for use in an alternative dispute resolution procedure.

History: Laws 2003, ch. 356, § 5.

ANNOTATIONS

Bracketed material. — The bracketed material was inserted by the compiler and is not part of the law.

Cross references. — For Title III of the federal Help America Vote Act of 2002, see 42 U.S.C. § 15481 et seq.

Effective dates. — Laws 2003, ch. 356, § 34 made Laws 2003, ch. 356, § 5 effective July 1, 2003.

1-2-3. Secretary of state; instructions; forms; certificates.

A. The secretary of state shall prepare and furnish to each county:

(1) sufficient forms, blanks, records, files or other equipment deemed necessary by him for the registration of voters, including suitable instructions concerning their use for each registration officer;

(2) printed forms of additional election certificates; and

(3) instructions to voters which shall set forth in nontechnical language the manner in which voters cast their ballots.

B. All registration or voting notices, forms, instructions, assistance or other information relating to the electoral process shall be printed in both English and Spanish.

C. Where a minority language is historically unwritten, all proclamations, registration or voting notices, instructions, assistance or other information relating to the electoral process shall be made available orally in the respective minority language, through the media when practicable, in public meetings and on election day at the polls.

History: 1953 Comp., § 3-2-3, enacted by Laws 1969, ch. 240, § 24; 1975, ch. 255, § 9; 1977, ch. 124, § 1.

ANNOTATIONS

Cross references. — For secretary of state prescribing identification badges for precinct board members and challengers, see 1-2-18 and 1-2-24 NMSA 1978.

For secretary prescribing form of affidavit of registration under Voter Records System Act, see 1-5-19 NMSA 1978.

For the secretary prescribing the form of the application for absentee ballot, see 1-6-4 NMSA 1978.

For order on ballots of offices to be voted on, see 1-10-3 and 1-10-8 NMSA 1978.

For secretary prescribing the form of tally sheets and signature rosters, see 1-11-15 NMSA 1978.

For secretary prescribing form of signature roster certificates and precinct board member's oath, see 1-11-16 NMSA 1978.

For secretary prescribing form for proposed constitutional amendments, see 1-16-7 NMSA 1978.

Duty of secretary of state is limited to furnishing of supplies to the various counties according to the demand of each county. The secretary of state has no duty to register, or cause to be registered, any voter. This is the duty of the registration officers of the individual counties. The affidavits of registration as well as other voting supplies are paid for by the state. There is no provision under which the various county clerks or registration officials can obtain affidavits of registration from any other source. 1959 Op. Att'y Gen. No. 59-169 (opinion rendered under former law).

1-2-3.1. Secretary of state; multipurpose registration form.

The secretary of state shall prescribe the form of a multipurpose certificate of registration, which shall be printed in English and Spanish. The certificate of registration form shall be clear and understandable to the average person and shall include brief but sufficient instructions to enable the qualified elector to complete the form. The certificate of registration form shall replace the affidavit of registration.

History: 1978 Comp., § 1-2-3.1, enacted by Laws 1993, ch. 314, § 3 and by Laws 1993, ch. 316, § 3.

ANNOTATIONS

Duplicate laws. — Laws 1993, ch. 314, § 3 and Laws 1993, ch. 316, § 3 enacted identical new sections of law. Both were compiled as 1-2-3.1 NMSA 1978.

1-2-4. Secretary of state; training and instructions to precinct boards [election boards]; training manual.

A. The secretary of state shall provide:

(1) instructions for the precinct board [election board], which shall include a brief nontechnical explanation of its duties as required by the Election Code [Chapter 1 NMSA 1978]; and

(2) a single training manual containing standard guidelines for the operations and processes of statewide elections, including pre-election day activities, election-day activities and post-election-day activities. Separate manuals for voting systems may be provided for each county, or if the single training manual is in a looseleaf binder format, sections for the voting systems used in a given county may be inserted in the training manual for that county.

B. When any specific duty is imposed by the instructions issued under the Election Code, the duty shall be deemed to be a requirement of the law.

History: 1953 Comp., § 3-2-4, enacted by Laws 1969, ch. 240, § 25; 1975, ch. 255, § 10; 2005, ch. 270, § 11; 2007, ch. 336, § 2.

ANNOTATIONS

Bracketed material. — The bracketed material was inserted by the compiler and is not part of the law.

Laws 2019, ch. 212, § 283, effective April 3, 2019, provided that references in the Election Code to "precinct board", shall be deemed to be references to "election board", as that term is defined in Section 1-1-13 NMSA 1978.

Cross references. — For the secretary of state providing instruction on procedure whereby precinct board shall determine identity of last person in line at time polls close, see 1-12-26 NMSA 1978.

The 2007 amendment, effective April 2, 2007, permitted the secretary of state to provide separate manuals for voting systems for each county or if a single training manual is in a looseleaf binder, sections of the voting system used in a given county may be inserted in the manual for that county.

The 2005 amendment, effective July 1, 2005, added Subsection A(2) to provide that the secretary of state shall provide a single training manual.

1-2-5. Secretary of state; election seminars.

In carrying out his duties under the Election Code [Chapter 1 NMSA 1978], the secretary of state shall, once before each and every statewide election, cause to be organized and conducted at convenient places and times in this state seminars on the administration of the Election Code. The secretary of state shall send written notice of the seminar to each county clerk setting forth the time and place of the seminar. Each county clerk, one of his designated deputies and one voting machine technician shall attend the seminar. Per diem and mileage shall be paid out of the funds appropriated to the secretary of state.

History: 1953 Comp., § 3-2-5, enacted by Laws 1969, ch. 240, § 26; 1975, ch. 255, § 11.

ANNOTATIONS

Cross references. — For schools of instruction for precinct board members and others, see 1-2-17 NMSA 1978.

1-2-6. Election board; appointment.

A. The county clerk on or before forty-two days next preceding a statewide election shall appoint the necessary election boards for that election, and before twenty-one days next preceding a special election the county clerk shall appoint the necessary election boards for that election. The appointment of the members of each election board shall be in writing and delivered to the person receiving the appointment.

B. The county clerk shall maintain in a public place in the county clerk's office a list of the members of the election board, the positions of the election board members and the assignments of the election board members. The list shall be made available at least forty days before a statewide election and at least twenty days before a special election and shall be updated when changed until forty-five days after adjournment of the state or county canvassing board or until forty-five days following any recount, contest or other judicial inquiry, whichever is later.

History: 1953 Comp., § 3-2-7, enacted by Laws 1969, ch. 240, § 28; 1971, ch. 317, § 2; 1975, ch. 255, § 12; 1991, ch. 105, § 1; 2019, ch. 212, § 19.

ANNOTATIONS

The 2019 amendment, effective April 3, 2019, changed the name of "precinct board" to "election board", and revised the provisions for appointing an election board by the county clerk; in the section heading, deleted "Precinct" and added "Election", and after "appointment", deleted "term"; in Subsection A, after "on or before", deleted "fifty-five" and added "forty-two", after "next preceding", deleted "the primary" and added "a statewide", and after "shall appoint the", deleted "precinct board for each precinct" and added the remainder of the subsection; and deleted former Subsections B and C and added a new Subsection B.

Cross references. — For definition of precinct board, see 1-1-13 NMSA 1978.

For attendance of board members at polling place, see 1-12-2 NMSA 1978.

The 1991 amendment, effective April 2, 1991, deleted "and a list of alternates for precinct board members of each precinct" at the end of Subsection A; deleted "and the alternates for members of the precinct board" following "board" in Subsection B; in Subsection C, deleted "representative district and" following "removal from the" and "from the list of alternates" following "qualified person"; and deleted former Subsection D, relating to filling vacancies in the office of alternate precinct board member.

Constitutional grounds for contest. — A candidate's claimed majority, adversely affected by conduct of election officials, afforded sufficient grounds for an election contest under N.M. Const., art. VII, § 5. *Seele v. Smith*, 1947-NMSC-068, 51 N.M. 484, 188 P.2d 337.

Erring officials not liable where foreseeability rule applicable. — Where secretary of state erroneously instructed precinct election officials to mail election returns to county clerk, as result of which they did not arrive within 24 hours as prescribed by law and were not counted, the foreseeability rule was applicable and erring officials were not liable to candidate who was denied emoluments of office until he had established his right thereto in an election contest. *Valdez v. Gonzales*, 1946-NMSC-044, 50 N.M. 281, 176 P.2d 173.

Election irregularities. — Elections conducted fairly and honestly will not be set aside for mere irregularity in the appointment of election officers or in the conduct of the election where no fraud or illegal voting is shown. *Carabajal v. Lucero*, 1916-NMSC-045, 22 N.M. 30, 158 P. 1088.

Am. Jur. 2d, A.L.R. and C.J.S. references. — 25 Am. Jur. 2d Elections § 89 et seq.

29 C.J.S. Elections §§ 55 to 63.

1-2-7. Election board; qualification of members; qualification of presiding judges; qualification of qualified residents.

A. In order to qualify for appointment by the county clerk as a member of the election board, a person shall:

- (1) be a voter of the county in which the person is appointed to serve;
- (2) be able to read and write;
- (3) have the necessary capacity to carry out an election board member's functions with acceptable skill and dispatch; and
- (4) execute the election board member's oath of office.

B. Before serving as a presiding judge of an election board, a person shall receive training in the duties of that position by the county clerk.

C. No person shall be qualified for appointment or service on an election board:

- (1) who is a candidate to be voted for at the election;
- (2) who is a spouse, domestic partner, parent, child, brother or sister of any candidate to be voted for at the election;
- (3) who is married to a parent, child, brother or sister of any candidate to be voted for at the election or who is the parent of the spouse or domestic partner of any candidate to be voted for at the election; or
- (4) who is a sheriff, deputy sheriff, marshal, deputy marshal or state or municipal police officer.

D. A county clerk may appoint qualified residents to serve on an election board under the direct supervision of the presiding judge. A qualified resident appointed by the county clerk shall:

- (1) meet the qualifications set forth in Paragraphs (2) through (4) of Subsection A of this section; and
- (2) be sixteen or seventeen years of age at the time of the election in which the qualified resident is serving as a member of an election board.

E. A qualified resident appointed to an election board shall not serve as the presiding judge or as an election judge.

History: 1953 Comp., § 3-2-8, enacted by Laws 1969, ch. 240, § 29; 1971, ch. 317, § 3; 1975, ch. 255, § 13; 1981, ch. 159, § 2; 2005, ch. 270, § 12; 2010, ch. 90, § 1; 2011, ch. 137, § 14; 2019, ch. 212, § 20; 2023, ch. 39, § 11.

ANNOTATIONS

Cross references. — For secretary of state prescribing form of precinct board member's oath, see 1-11-16 NMSA 1978.

The 2023 amendment, effective June 16, 2023, revised the qualifications for appointment or service on an election board, and removed a provision limiting the number of minors that a county clerk may appoint to serve on an election board; deleted "minor" and added "qualified resident" throughout the section; in Subsection A, after "In order to qualify", added "for appointment by the county clerk"; in Subsection B, after "duties of that position", deleted "and be certified for the position"; in Subsection C, Paragraphs C(2) and C(3), after "spouse", added "domestic partner"; and in Subsection D, after "may appoint", deleted "not more than two minors" and added "qualified residents", in Paragraph D(1), after "set forth in", added "Paragraphs (2) through (4) of", and after "of this section", deleted "except the minor need not be eligible to vote", and deleted former Paragraphs D(3) through D(6), which provided certain qualifications for minors to serve on an election board.

The 2019 amendment, effective April 3, 2019, replaced "precinct board" with "election board" throughout the section.

The 2011 amendment, effective July 1, 2011, required members of precinct boards to be voters of the county in which they serve; prohibited the appointment of a person who is married to a person related to a candidate to be voted for at the election or who is the parent of the spouse of a candidate; and permitted the appointment of minors only to the precinct board in the county in which the minor's parents or legal guardian reside.

The 2010 amendment, effective May 19, 2010, in the catchline, added "qualification of minors"; in Subsection A(3), after "capacity to carry out", deleted "his" and added "a precinct board member's"; and added Subsections D and E.

The 2005 amendment, effective July 1, 2005, added Subsection B to provide that a person shall receive training and be certified before serving as a presiding judge of a precinct board.

Oath of precinct official. — Former Election Code provision, as amended, dealing with oath of precinct election officials merely required that each group of officials certify that they had and would discharge the duties of their respective offices faithfully and impartially. *Seele v. Smith*, 1947-NMSC-068, 51 N.M. 484, 188 P.2d 337.

Am. Jur. 2d, A.L.R. and C.J.S. references. — 25 Am. Jur. 2d Elections § 90.

29 C.J.S. Elections § 61.

1-2-8. Repealed.

History: 1953 Comp., § 3-2-9, enacted by Laws 1975, ch. 255, § 14; 1987, ch. 249, § 1; 1991, ch. 105, § 2; 1978 Comp., § 1-2-8, repealed by Laws 2019, ch. 212, § 284.

ANNOTATIONS

Repeals. — Laws 2019, ch. 212, § 284 repealed 1-2-8 NMSA 1978, as enacted by Laws 1975, ch. 255, § 14, relating to precinct board, lists from major political parties, effective April 3, 2019. For provisions of former section, see the 2018 NMSA 1978 on *NMOneSource.com*.

1-2-9. Election board; standby list.

A. Not less than twenty-one days prior to the date for appointing members of election boards, the county clerk shall publish a notice once in a newspaper of general circulation to the effect that election boards are to be appointed for the specified number of precincts, stating the number of persons composing each board and that applications for the standby list will be accepted at the county clerk's office.

B. The county clerk shall then compile from the individual applicants a standby list of election board members. The persons on the standby list shall have the same qualifications and comply with the same requirements as provided for election board members.

History: 1953 Comp., § 3-2-9.1, enacted by Laws 1975, ch. 255, § 15; 1991, ch. 105, § 3; 2019, ch. 212, § 21.

ANNOTATIONS

The 2019 amendment, effective April 3, 2019, replaced "precinct board" with "election board" throughout the section.

The 1991 amendment, effective April 2, 1991, in Subsection A, deleted "and alternates" following "precinct boards" in two places and deleted "and the number of alternates for each board" following "composing each board" near the end of the subsection.

1-2-10. Repealed.

History: 1953 Comp., § 3-2-9.2, enacted by Laws 1975, ch. 255, § 16; 2010, ch. 90, § 2; 1978 Comp., § 1-2-10, repealed by Laws 2019, ch. 212, § 284.

ANNOTATIONS

Repeals. — Laws 2019, ch. 212, § 284 repealed 1-2-10 NMSA 1978, as enacted by Laws 1975, ch. 255, § 16, relating to precinct board, appointment by county clerk, effective April 3, 2019. For provisions of former section, see the 2018 NMSA 1978 on *NMOneSource.com*.

1-2-11. Election board; assignment.

Wherever possible, the county clerk shall assign persons appointed as election board members to serve in precincts wherein they reside or in precincts located in the representative district wherein they reside. In the event of a shortage or absence of election board members in certain precincts, the county clerk may, in the best interest of the election process, assign appointed election board members to serve on any election board in the county; provided that such appointed board members shall not change the proportionate representation of each party on the board.

History: 1953 Comp., § 3-2-10.1, enacted by Laws 1977, ch. 222, § 5; 2011, ch. 137, § 15; 2019, ch. 212, § 22.

ANNOTATIONS

The 2019 amendment, effective April 3, 2019, replaced "precinct board" with "election board" throughout the section.

The 2011 amendment, effective July 1, 2011, made stylistic changes.

1-2-12. Election board; positions on each board.

A. Each election board shall consist of:

- (1) a presiding judge;
- (2) two election judges; and
- (3) election clerks who are appointed to assist the presiding judge and election judges.

B. The county clerk shall appoint presiding judges and election judges so that not more than two of the three judges belong to the same political party at the time of their appointment; provided that:

- (1) a judge of an election board shall not have changed party registration in the two years next preceding the judge's appointment in such a manner that the judge's prior party registration would make the judge ineligible to serve on the assigned election board; and
- (2) a judge of an election board shall not continue to serve on an election board if the judge changes party registration after the date of appointment in such a manner to make the judge ineligible to serve on the assigned election board.

C. The county clerk may appoint teams of election judges under the supervision of one or more presiding judges for absent voter precincts, recounts and special elections; provided that each team shall consist of two election judges and that each election judge on a team shall not belong to the same political party as any other election judge on the team at the time of the appointment; and provided further that an election judge shall not have changed party registration in the two years next preceding the judge's appointment in such manner that the judge's prior party registration would make the judge ineligible to serve on the assigned team.

D. The county clerk may appoint election clerks to an election board as necessary to assist the presiding judge and election judges if the county clerk determines that additional election board members are needed.

E. County clerk employees may be assigned by the county clerk to provide support to an election board or polling location.

History: 1953 Comp., § 3-2-11, enacted by Laws 1969, ch. 240, § 32; 1975, ch. 255, § 17; 1981, ch. 159, § 3; 1985, ch. 160, § 1; 1991, ch. 105, § 4; 1993, ch. 314, § 4; 1993, ch. 316, § 4; 1995, ch. 124, § 2; 2009, ch. 150, § 2; 2011, ch. 137, § 16; 2015, ch. 145, § 9; 2019, ch. 212, § 23; 2023, ch. 39, § 12.

ANNOTATIONS

Cross references. — For appointment of precinct board, see 1-2-6 NMSA 1978.

For qualification of board members, see 1-2-7 NMSA 1978.

The 2023 amendment, effective June 16, 2023, revised the composition for teams of election judges that may be appointed by the county clerk, provided that a team of election judges shall be under the supervision of one or more presiding judges, and established qualifications for election judges appointed to a team; and in Subsection C, after "may appoint teams of", deleted "presiding judges and", after the first occurrence of "election judges", added "under the supervision of one or more presiding judges", after the next occurrence of "for", deleted "alternate voting locations", after "provided that each", added "team shall consist of two election judges and that each election judge on a", and after the next occurrence of "team", deleted "meets the requirements of Subsection B of this section" and added "shall not belong to the same political party as any other election judge on the team at the time of the appointment; and provided further that an election judge shall not have changed party registration in the two years next preceding the judge's appointment in such manner that the judge's prior party registration would make the judge ineligible to serve on the assigned team".

The 2019 amendment, effective April 3, 2019, changed the name of "precinct board" to "election board", and revised the required composition of an election board; replaced "precinct board" with "election board" throughout the section; in the section heading, deleted "number for each precinct" and added "positions on each board"; in Subsection A, in the introductory clause, deleted "For primary, general and special federal elections, the precinct" and added "Each election", in Paragraph A(3), deleted "one" preceding "election", and after "election", deleted "clerk" and added "clerks who are appointed to assist the presiding judge and election judges"; in Subsection B, in the introductory clause, after "county clerk", deleted "in appointing precinct boards for primary, general and special federal elections", deleted paragraph designations "(1)" and "(2)", and after "election judges so that", deleted "at least one election judge shall not be of the same political party, if any, as the presiding judge; and" and added "not more than two of the three judges belong to the same political party at the time of their appointment; provided that:", and added Paragraphs B(1) and B(2); in Subsection C, added "The county clerk", after "election for judges for", added "alternate voting locations", after "voter precincts", deleted "recount precinct boards" and added "recounts", after the next occurrence of "and", deleted "alternate voting locations" and added "special elections", after "meets the requirements", deleted "pursuant to Paragraph (1) of this subsection" and added "of Subsection B of this section"; deleted former Subsection C; in Subsection D, after the subsection designation, deleted "If", after "county clerk", added "may appoint election clerks to the election board as necessary to assist the presiding judge and election judges if the county clerk", after "additional election", deleted "clerks" and added "board members", and after "are needed", deleted "the clerk may appoint such additional election clerks as the clerk deems necessary"; and in Subsection E, after "employees may be", deleted "appointed to assist a precinct board" and added "assigned by the county clerk to provide support to an election board or polling location".